

Harihar Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 September 2019 · WRIT - C No. - 27035 of 2019 · **Writ dismissed; liberty to Executive Engineer under clause 6.5**

HEADNOTE

A writ against a recovery citation for electricity arrears is not a fit case for discretionary jurisdiction where the consumer may question correctness or quantum of the dues before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. The petition is dismissed with liberty to take that course.

FACTUAL SUMMARY

Harihar Yadav, running a rice mill, was served a recovery citation dated 9 May 2019 seeking to recover electricity dues of Rs. 65,80,211 from him. His case was that he had cleared all electricity dues up to 2014 and that the mill had thereafter been closed, so arrears of such a huge amount could not exist. Counsel for the electricity distribution division appeared. After successive adjournments, the Division Bench heard his writ petition challenging the citation.

HOLDING-UNITS

INTERPLAY · UP-2005::6.5

[billing-objection-to-executive-engineer](#)

HOLDING

Correctness or quantum of electricity dues demanded by a recovery citation can be questioned before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005; the High Court will not exercise discretionary writ jurisdiction and will dismiss the petition with liberty to take that statutory course.

¶ 1

PRINCIPLE TAGS

[billing-objection-to-executive-engineer-under-6.5](#) A writ against a recovery citation for electricity arrears is not a fit case for discretionary jurisdiction where the consumer may question correctness or quantum of the dues before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND QUANTUM OF THE RS. 65,80,211 ELECTRICITY DUES

The mill-closure defence and the alleged clearance of dues up to 2014 were not examined; the consumer was left to the Executive Engineer under clause 6.5. ¶ 1